

THE REVIEW

A MONTHLY PERIODICAL, PUBLISHED BY THE
NATIONAL PRISONERS' AID ASSOCIATION

AT 135 EAST 15th STREET, NEW YORK CITY.

TEN CENTS A COPY.

SEVENTY-FIVE CENTS A YEAR

E. F. Waite, President.

F. Emory Lyon, Vice President.

O. F. Lewis, Secretary
and Editor Review.

E. A. Fredenhagen,

Chairman Ex. Committee.

James Parsons,

Member Ex. Committee.

A. H. Votaw, Member Ex. Committee.

G. E. Cornwall,

Member Ex. Committee

Albert Steelman,

Member Ex. Committee

THE NATIONAL CONFERENCE OF CHARITIES AND CORRECTION

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VOLUME I, No. 4.

APRIL, 1911

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MENTAL DEFECTIVES AND MORAL DELINQUENTS

FRANK MOORE, SUPERINTENDENT NEW JERSEY REFORMATORY

To deal successfully with the prodigious problem of moral reform, no one thing seems more essential than a scientific study and a systematic treatment of the mentally deficient delinquent. Obviously, a classification of evil doers based upon their mentality is of vast importance. Before the work of reform can intelligently be begun there must be such a complete diagnosis of each individual case that the cause of the moral malady may be discovered, if possible. Mental deficiency is without question a cause of moral delinquency, and the reform of a large number of delinquents cannot wisely be undertaken until the existence of feeble mindedness is established in each case where it exists.

In the work of reform, too little attention has been given to careful diagnosis; too much guessing has prevailed as to the criminal's mental character, or too much ignoring of mental ability. Criminals, whether mentally normal or subnormal, have all been subjected to the same system, with the hope that the weak-minded and strong-minded alike would be made into good citizens. The reason for this has been, perhaps, that there have appeared to be few if any standards by which it has been thought the mental character of the criminal could be accurately judged. But certain systems recently have been developed that render guessing no longer a necessity, and hence a great mistake.

Doctor Sante de Sanctis of Italy, Doctor De Croly of Germany and Doctor Alfred Binet of France have established admirable systems in dealing with this problem.

Classification of the mentally deficient delinquent may be perhaps most easily arrived at by the psychological standards of the Binet system. This system has been in use in some of the feeble-minded institutions of the country, and has been used by the New Jersey Reformatory the past year;

there may be some other reformatories that have also used it with most satisfactory results. Each inmate in the Reformatory of New Jersey, received during the year, has been subjected to the Binet tests, and this determining of a psychological age has established the fact that 46% of the inmates received during the last year are mentally subnormal.

The physical age at which delinquents may be legally committed to the reformatory is sixteen to twenty-five years. But by examination it has been discovered that the mental age for nearly a majority was below twelve years, while in one case it was less than five. In other words, 46% of those received had minds which in knowledge and ability were only equal to the minds of the child from five to twelve years old. By the system employed, they have been classified in the precise year between these two limitations, to which they mentally belong.

There is, however, without question one point at which the system needs to be taken with a considerable degree of care. Of the 46% who were mentally deficient, according to the tests, it was found by a study of the history of these cases that 17½% had received only a year's schooling or less. What their minds would have been if they had not had this misfortune could not be determined by the system, but could only be arrived at when they had been given the opportunity of an education. From this data, it would seem wise to divide the 46% mentally defectives into two classes.

First: The hopelessly defective or feeble-minded delinquent, of whom there were 28½%.

Second: The hopeful cases of defectives, possibly capable of development into normals with proper training, of whom there were 17½%.

After diagnosis of the deficient cases, the next natural step is that of observation. Our observation, covering only a short time and therefore not very dependable, and perhaps of only slight suggestive value, has shown that these mentally deficient delinquents, while under discipline, seem to be inclined to commit only offenses that may be called neglects, and not offenses that are vicious in character, unless some one of a stronger mind has inspired the more vicious deed. The great number of their failures are failures of omission, due to lack of apprehension. They fall below the standard because their minds are below it. It is also most apparent that there

is need of a special method of treatment of the delinquent who is defective. There should be a separation of him from the normal. His mind is slow. He does not grasp instruction as quickly as the normal, and to subject him to the same standards under the same rules is inhumane. In discipline he is seriously interfered with by those who are bright and yet wilful, and who make him the butt of their jest. He cannot be taught the same subjects that can be taught to the average mind. It is a waste of time to undertake to teach him more than the simplest rudiments of the lower grammar grades. In work he is most successful in that which is purely methodical, in which there is little intelligence and initiative required. He can rise very little above the laborer, and to expect him to be a real mechanic or to try to train him for such will only mean failure, and the reformatory system that recognizes these limitations will certainly be most apt to succeed.

The reformatory needs to be most discriminating in dealing with this class when they are dismissed. The character and influences of the place to which they are paroled is a vital matter. These delinquents amid evil surroundings, or in the hands or under the influence of unscrupulous people are most dangerous. Unhesitatingly and almost without knowing it, they become the tool of the vicious. They are like the weather vane, which sways instantly in the direction of the power that is exerted upon it. The best people, those who are interested in helping the unfortunate and who will seek to carry on through the years the work which the institution has but begun, ought to be sought to help them when these individuals are dismissed from the institution. If this class is wisely dealt with, a percentage of this by-product of humanity, large enough to make it worth while, will be changed from mere animal things into individuals of value in the world.

CHICAGO'S VICE COMMISSION

[EDITORIAL REPRINTED FROM NEW YORK EVENING POST, APRIL 10]

[During the first week of April a remarkable report was issued by the Chicago Vice Commission. The editorial of the New York Evening Post of April 10th on the Chicago report merits reproduction in full.]

The report of the Chicago Vice Commission, made public last week, is a notable document for many reasons. To begin with, this is said to have been the first commission appointed by the mayor of a great city to deal with this question. In the next place, it conducted its inquiry in a scientific and dispassionate manner, and as a result has some definite and practical recommendations to make. But most important of all is that it rejects definitely and vigorously the theory that since prostitution has always been and is always likely to be, therefore there is nothing to be done but to regulate and tolerate and segregate. Into none of these pitfalls has it fallen. Without letting its idealism run away with it, the committee—a strong one, composed of business men, teachers, editors, doctors, and ministers—lays down the sound truth that the proper policy for a city is “constant and persistent repression,” with “absolute annihilation as the ultimate ideal.” There is no counsel of cowardice and despair here; no advocacy of those evil, out-worn policies of toleration which have long since demonstrated in Europe their inability to protect the public health or morals. What is counselled is a determined and vigorous grappling with the evil by the municipality, while the community as a whole devotes itself to those far-reaching policies of education and economic readjustment, which must eventually control some of the human currents that underlie this fearful social peril.

How great that evil is in Chicago alone appears from the committee's sober estimate that the annual loss in lives is 5,000 and the annual profit of those engaged in the trade is \$15,000,000, which latter figure has since been raised four-fold. It has often been pointed out in these columns and elsewhere that, if there were any other single drain upon a city that cost it

5,000, or let us say even 2,500, lives a year, the community would be up in arms about it. A fire loss of that figure would stir this city to its foundations; the heavy toll in children's lives paid every summer because of impure or improper food has roused the humanitarian spirit, and we are all familiar with the public determination to blot out the tuberculosis scourge as rapidly as possible. But these matters here come under the Board of Health, which spends great sums every year in such crusades. No department really has charge of this scourge of immorality save the Police Department, which in the past has regulated it as though merely with a view to obtaining for its corrupt members as large a share in the profits as possible.

That this indifference of the municipality to one of the most glaring and discouraging evils of our modern life is intolerable, the Chicago committee has fully realized, for it has recommended the immediate appointment of a morals commission of five members to be chosen by the mayor and approved by the city council, to serve for two years without pay, the commissioner of health to be an ex-officio member, its duty being to "gather evidence and to take the necessary legal steps for the suppression of vice in Chicago wherever such suppression is believed to be advisable." Its jurisdiction is to cover Chicago and the territory three miles beyond its corporate limits. In addition to this morals commission, there is urged a morals court to consider the cases submitted to it by the morals commission. But far-reaching as these are, they are not the only practical remedies suggested. The city is urged to erect a trade school and hospital for wayward women on a farm owned by the municipality. A special house of detention is urged as absolutely necessary, as is a second state school for wayward girls, the existing one being overcrowded. Of vast importance in any city would be the suggested creation "of a sympathetic agency with paid agents, who have followed a special instruction and would be charged with regular supervision of the children of unmarried mothers," and also an amply financed committee on child protection, unrestricted in its scope. Indeed, the welfare of the children has been a deep concern to the committee, which would keep them off the streets at night, forbid the sending of any messenger under twenty-one to a disreputable resort, while it suggests an increase in the number of small parks and recreation centers. It urges dance halls, properly supervised, with the sale of liquor prohibited;

it implores the churches to use their facilities for sane entertainments and urges wise instruction in sex hygiene in the public schools.

As for the worst offenders, the procurers, the committee urges that there should be relentless prosecution of them and the professional keepers of disreputable resorts. For the betterment of the police force in relation to the evil there are suggested a number of remedies for the existing conditions, such as the severe punishment of grafters, the constant rotation of patrolmen in the various districts, and the investigation of complaints by picked men from distant districts. Most interesting of all is the suggestion that women police officers be appointed to deal with the question of morals, and particularly to protect strangers on arrival. Why this important duty has thus far been left to volunteer effort in almost all of our cities passes understanding. First offenders ought, the committee thinks, to be invariably placed under the charge of women probation officers. We note also this suggestion:

To Federal authorities: A Federal bureau of immigration should be established in great distributive centers, such as Chicago, to provide for the safe conduct of immigrants from ports of entry to their destination. Efficient legislation should be enacted and present laws enforced in such a manner, as to the traffic in women within the boundaries of each state, and as thoroughly, as the Federal authorities have dealt with the international traffic.

Not unnaturally, it finds that the public health authorities could do much to better conditions if they would put an end to the wholesale dispensing of cocaine and morphine by certain druggists.

Finally, these investigators are convinced that much of the race friction in large cities is due to the vice problem, and it dwells vigorously upon the crying injustice of the Chicago authorities in invariably driving the prostitutes into the quarters occupied by colored people—in one instance into the section occupied by the homes, Sunday schools, and churches of the best class of colored people. One feature in the report appeals to Chicago's pride. After all the terrible stories of her "levee" districts, the committee is certain that Chicago is "more moral proportionately to its population than most of the cities in her class." Are we so sure that New

York is—as Mayor Gaynor would have us believe? Has not the time come for adapting to this city some of the many admirable, practical, and constructive suggestions this report contains?

FOUR SEARCHING LAWS FOR FOUR SOCIAL EVILS

W. D. LANE, ASSISTANT EDITOR REVIEW

A state campaign of much interest to social workers in general is being waged by the Associated Charities of Duluth, Minnesota, for the enactment by the Minnesota legislature of four laws pertaining to the four related social evils of vagrancy, desertion of family, drunkenness and poverty. A state labor colony for tramps, vagrants and deserters, a general stiffening of the punitive, reformatory, and other features of the law against desertion of destitute families, the establishment of boards of inebriety, and a commission on the causes of poverty, are, respectively, the specific measures by which the four enumerated evils are to be met.

At the time of our going to press, those fighting for the hills were hopeful for the passage of all except that creating boards of inebriety. All of the bills had been referred to their appropriate committees in both house and senate, and the wide-spread discussion given to them by newspapers throughout the state, most of which was favorable, was expected to aid materially in their passage.

The bill dealing with drunkenness provides that in every city having a population of over 50,000 the common council or city council may determine that there shall be a local board of inebriety, to consist of five persons, appointed by the mayor, two of whom shall be physicians, and one of whom, if practicable, shall have had experience in social or charitable subjects. This board of inebriety, or one of its field officers, may direct the dismissal of any complaint charging a person with intoxication or the use of any habit-forming drug. If the complaint be not dismissed and the accused be found guilty, the court may release the person so convicted under the supervision of a field officer of the board of inebriety for a period of from six months to one year. The court may impose conditions upon the person supervised and upon the violation of any of these conditions further

penalties may be imposed. If the accused be sentenced to hard labor in a jail or house of correction, fifty cents for each day's work shall be paid over for the support of his wife or minor children.

The chief objection raised to this bill is that the State of Minnesota does not yet require such boards of inebriety, and that the work which it would do can be accomplished through an extension of the probation system.

The proposed commission on causes of poverty would consist of five citizens of the state, three of whom must be experts in social, charitable, or sanitary matters, and two of whom must be lawyers. The duties of the commission would be "to investigate causes of, or factors in, promoting undesirable living conditions, ill health or pauperism, such as poor and unsanitary housing, overcrowding in tenements, methods of dealing with minor offenders and juvenile delinquents, and such other kindred subjects as the commission may elect." It shall also study the adequacy of the present laws of the state on these subjects, the experience of other states and countries, and shall frame laws embodying the results of its investigations. Thus the bill aims to "eliminate the causes of poverty instead of dealing only with the effects." The members are to be unpaid except for reimbursement of travelling expenses. A salaried secretary may be employed. The bill appropriates \$6,000 for the purposes of the commission, whose report must be submitted to the legislature on or before January 15th, 1913.

The purpose of the proposed state labor colony for tramps, vagrants and deserters is thus stated by the Associated Charities: "To make useful citizens out of tramps and beggars, instead of the rounders from jail to jail, and city to city, created by the present system. To eventually eliminate tramps and beggars and vagrants, which has been largely accomplished in Germany, Holland, Belgium and Switzerland and to a considerable extent in Massachusetts."

Detention, humane discipline and instruction are to be the functions of the colony. Any court may, in lieu of other lawful commitment, commit to the colony any male over twenty years of age who shall have been adjudged by such court to be a tramp or vagrant, or a deserter of a wife or child in necessitous circumstances. The sentence must be indefinite in length and

parole or discharge may be made at any time after commitment, except that in no case may detention exceed two years.

The colony is to be under the supervision and management of the state board of control. Its buildings are to be designed for not less than three hundred inhabitants, and \$100,000 is appropriated for the purchase of a site and the erection of buildings. Educational and industrial training are to be provided for.

The problem of wife desertion is declared to be an extremely serious one in Minnesota. The new bill aimed at this evil is based largely on the "model law of the District of Columbia," as well as upon a study of every desertion law in the United States. It follows also recommendations of the commission on uniform state laws. The bill makes a misdemeanor of any desertion of, wilful neglect of, or refusal to provide for, a wife or a legitimate or illegitimate child under 16 years of age, in necessitous circumstances. In case of conviction it provides for a fine of not more than \$100, or imprisonment at hard labor for not more than ninety days, or for both. The court may direct the fine to be used for the support of the wife or child.

Some prominent features of the law, which are declared to be advantages over the present law, are as follows: It provides specifically that when a deserter of a destitute family is sentenced to confinement, he shall be employed at hard labor. This tends to prevent desertion, saves the value of the man's labor to the community, braces him up and makes him a more useful citizen who is more likely to support his family after release.

It requires the payment of the proceeds of the man's labor where it most sorely is needed, to his deserted wife and children. Under the present law, the convicted deserter is supported in jail, while his family often become paupers.

It specifically allows any person to make the complaint and makes both husband and wife compellable witnesses in all relevant matters. Members of the family are reluctant to complain in the most flagrant cases of neglect and desertion, or else withdraw their complaint before conviction and then the desertion is repeated. If convicted upon complaint of members of his own family, the man is very apt "to take it out on them" when released.

It applies to the non-support of illegitimate as well as legitimate children.

A STATE PRISONER ON PRISON REFORM

From a state convict at Montgomery, Alabama, comes a criticism of that state's treatment of the criminal, and a series of recommendations for improving that treatment, which read like an extract from a report of a state board of charities. The author of the article is Albert Driscoll, who is serving a four years' sentence for safe-blowing. The article was addressed to the members of the legislature and was printed in a Montgomery newspaper. Driscoll recommends the indeterminate sentence, a prisoners' aid society, and suppression of the names of those placed on parole. Parts of his article follow:

“There have been several sporadic attempts to have an improved parole system inaugurated in this state, but somehow or other they have never materialized in any legislation. If there is an individual or an association in Alabama today who has the moral welfare of the two thousand odd convicts really at heart and wishes to benefit them, now is the time for them to get busy during the present session of the legislature.

“The crying need of some legislation on this subject is self-apparent. This State as represented by its prison system is not abreast of the spirit of the day. The old punitive method of dealing with crime as against the reformatory system is still in operation. No attention is paid to the old axiom of an ounce of prevention being better than a pound of cure, as regards those unfortunates who by environment, hereditary tendencies or pure cussedness for the criminal class. It is a large and constantly growing class and from a moral as well as a economic viewpoint it demands attention.

“The old idea of the State revenging itself on the malefactor still obtains and beyond securing as much revenue as possible from the convict during his incarceration, no attention is paid to his moral betterment except for the weekly sermon conducted by the prison

chaplains. The man in stripes is regarded as a commercial asset solely. Several commutations from the capital penalty to life imprisonment have been secured in years past by being based on the argument that a life convict would be worth so many more thousand dollars than a dead one. Ye shades of Shylock! Has this rich State no other source of revenue than its convicts?

“When the pound of flesh has been exacted, he is abruptly turned loose to his own devices without a cent nor any equipment to help him to earn an honest livelihood. In every casual glance he will read suspicion and in his search for friends and sympathy he will be more than apt to search out other discharged convicts in former congenial haunts and from that it is but a short step to a life of habitual crime.

“Would it not be better to sentence every offender under an indeterminate sentence law, so that when the experts who have him in charge are convinced that he is thoroughly reformed, that on their recommendation and with the pardon board’s approval, he could be paroled and turned over to a prisoners’ aid society? This society should be a branch of the state convict department and it should retain control of paroled prisoners and sustain them until they could be placed at work. The great desideratum should be secrecy and the names of the paroled men should never be made public nor anyone made acquainted with their prison record except the direct head of any firm that might give them employment. Convicts are human and sensitive and they should be given a fair chance with a clean slate and not be handicapped at the start with a lot of notoriety. Give a man a bad name and he will very likely be forced to live up to it, except he has a strong character, and the class we are considering is not noted for strength of character, or they would be in other ranks of life. To the contrary, those who have slipped and fallen are entitled to special assistance and every manly man should feel in his heart a desire to help the under dog and to give him a chance to regain his manhood and self-respect.

“I do not ask you to receive a paroled convict as your personal friend, nor to put him up at your club, but I do ask you to aid the

enactment of such legislation as will give him a fair chance in life. It will cost you nothing although the fees of the sheriffs and jailers may be reduced. We need an indeterminate sentence law, a parole system based on merit, a trade school for youthful offenders, and a state aid and employment bureau for paroled convicts. The whole convict department should be taken out of politics and higher salaries would attract a better class of men as officers.

“Corporal punishment is a relic of the middle ages and in substituting a better and more humane system of maintaining discipline the morale of the wardens will be elevated. The writer, who has served seven years as a state convict, knows by personal experience and observation that this method of punishment is degrading to the administrator as well as to the recipient.

“My heartfelt desire and my object in writing this article is the hope that it may inspire somebody to befriend the prisoners. We can’t maintain a lobby at the capitol. The idea of a delegation in stripes soliciting votes is ludicrous. I do hope, however, that some broad-minded member of the legislature will advocate our cause.”

IN THE PRISONERS' AID FIELD

PROGRESS IN CONNECTICUT

The retiring president of the Connecticut Prison Association recently wrote:

The past nine years have been years of progress. Five important steps have been taken, which bear directly upon the treatment of the criminal. Not one of these originated in Connecticut. We are not roadmakers. We slowly adopt courses which have been to some extent tried and proved efficient by others.

In 1901 was passed the indeterminate sentence law. Our late secretary was an indefatigable worker for its passage. Coupled with the parole law, the operation of the indeterminate sentence law promises much. It marks a great innovation. Naturally it must work its way slowly and must demonstrate its true worth to the community by years of experimentation.

In 1901 was also passed a law calculated to protect the public from the incorrigible, and deter such from continuance in crime. I refer to the law which requires that the judge, in the case of a third-term offender, shall make the maximum term of imprisonment thirty years. It is a severe law. But no one need suffer from it. An incurable criminal should not be allowed to imperil the interests of the public. If this law were enacted and enforced throughout the land, the majority of professional criminals and degenerates would soon be under constant surveillance.

The probation law, passed in 1903, has rapidly come into favor. Its operation has told its own story wherever it has had any chance at all. It has proved especially advantageous in the management of delinquent children.

In 1909 a law was passed, having for its end the prevention of the line of criminals, which the laws of heredity might seem to guarantee. The method employed is sterilization. There is much to be said for and against this

measure. There is much skepticism regarding it. Time will demonstrate the wisdom or wickedness of such a law.

In 1909 decisive steps were taken for the establishment of a reformatory. This move is of state-wide interest. We cannot see how we have delayed so long. It is in the interest of young men. We hope much from this institution. Since success depends largely upon the spirit and ability of those in charge, —God give us men.

I have mentioned the chief measures enacted for the improvement of penological conditions. There are many signs of promise that have not yet found expression in legislation. Deep interest is taken in the physical, mental and moral development of children. And a few are coming to study the cold, hard facts, in the limelight of political economy, as to the fruits, in insanity and crime, of the traffic in intoxicants. Some day the good sense of the people will assert itself, and the refuge of lies will be swept away, and the real situation will be faced.

Our present jail system is being weighed in the balances and found wanting. Many believe that state management of jails would be more economical, and conducive to better results than are now obtained. A state farm for the inebriate, with nourishing food, fresh air, sunshine and moral influences, and hard work for a good long term, would, it is believe, be a merciful solution of the distressing rounder problem.

The Connecticut Prison Association was first organized as “The Prisoners’ Friends Corporation,” Tuesday, March 9, 1875, at a general meeting held in the lecture room of the Center Church, Hartford.

Its first president was Judge Heman H. Barbour of Hartford, and at his death Rev. Dr. Joseph Cummings, president of Wesleyan College, was chosen president.

December 8, 1876, a reorganization was affected under the name of “The Connecticut Prison Association.”

Hon. Francis Wayland, dean of the Yale Law College, was then elected president, and continued in that office until the time of his death, January 9, 1904, more than twenty-seven years.

Rev. H. M. Thompson, D.D., of Hartford, served the association as president from November 9, 1904, until October 27, 1910.

Mr. John C. Taylor was secretary of the association from March 9, 1875, until his death, October 4, 1909, more than thirty-four years.

The objects of the Connecticut Prison Association as expressed in the constitution are:

1. To benefit society by the reformation of criminals.
2. To assist prisoners in the work of self-reform.
3. To promote reformatory systems of prison management.
4. To aid discharged convicts in living honorably.
5. To co-operate in the prevention and repression of crime.

Since its organization the association has extended a friendly hand to hundreds of discharged convicts, has had a part in advocating progressive laws and in forming an intelligent public opinion on the problems of criminology.

SAVING GIRLS IN NEW YORK CITY

In New York City is Waverly House, a temporary home for young women released on probation by the courts. The principal problem of the New York Probation Association, which maintains the House, is the rehabilitation of the young women convicted or arraigned for prostitution. In the second annual report of the association, Miss Maud Miner, the society's secretary, writes:

“Among the girls who have been received into Waverly House this year, nine per cent have been pronounced deficient when examined by experts as to their mental condition, and a much larger percentage, approximately one-third, can be said to be borderline cases. They have not, except in three instances, been proper subjects for insane asylums or present institutions for the feeble-minded, yet they are distinctly below par mentally and not entirely responsible

for their moral conduct. It is useless for the state and city to spend money for these girls in reformatory institutions, as has been done in several of these cases, only to turn them out after one, two, or at most three years, to be preyed upon in the community. In a custodial institution where they could have permanent care, a happy life would be possible and society would be saved from caring for them in prisons and reformatories, and from having the number of degenerates augmented by their offspring.

“It is important to study the psychology of the individual girls and women, and also to determine how far vice or criminality may be attributed to innate depravity, low grade mentality or a degenerate inheritance. Psychological and psychopathic experts should be appointed to observe those who come in conflict with the law, not only with a view to providing more intelligently for the individuals, but for the purpose of discovering actual causes and conditions, so as to prevent others from entering on a life of vice and to check the increase of numbers in these classes.

“How far immorality and prostitution are the result of work conditions and the inability to live on the wages paid, how far these are a primary or a secondary cause, we do not definitely know. It is true that nearly all the girls have at some time been employed and that many of them have been working under conditions which were not favorable.

“Girls who have worked in kitchens, restaurants, offices, factories, stores, on the stage and in different workshops have many strange stories to tell, and one realizes that girls going out into the world of work are subject to many temptations. Girls crave some fun and amusement, and it is a very natural, normal thing. They do not seek it in dangerous places, but the truth is that few others are open to them. To an increasing extent vice is being linked with amusement and recreation. The men who procure girls for immoral purposes from city and country, and who send them to the streets to earn money for their own enrichment, are responsible, to a great extent, for the constantly increasing supply of women who enter upon a life of prostitution.”

That the association has work to do is strikingly evidenced by the following table, showing the nature of the dispositions of cases in the night court for women.

“During the year from August 1, 1909, to July 30, 1910, 7,896 complaints were taken against girls and women in the night court, for offenses relating to immorality and prostitution. These included soliciting on the streets for purposes of prostitution, accosting men, associating with dissolute and vicious persons, and violating the tenement house act by carrying on prostitution in a tenement house.

“The disposition of the cases was as follows:

Discharged	2,648
Fined \$1 to \$10	3,913
Committed to the Workhouse	1,071
Placed on probation	156
Placed under Good Behavior Bond	71
Committed to N. Y. State Reformatory at Bedford	6
Committed to N. Y. Magdalen Benevolent Society	9
Committed to Protestant Episcopal House of Mercy	3
Committed to Roman Catholic House of the Good Shepherd	12
Committed to Immigration Authorities	7
Total	<u>7,896</u>

“Of the total number, 84 per cent were almost at once returned to the streets by being discharged, fined, or placed under a good behavior bond. Fourteen per cent of the remaining 16 per cent were committed to the workhouse, and in only two per cent of the cases was some helpful measure tried—probation or a reformatory.

“The association has during 1910 developed a plan for preventive work to aid more of those girls who are in danger and to seek to understand better the conditions in the different districts tending to

bring the girls into trouble. Many of this class have already been referred to the association, and it has been possible to help them by putting them in touch with helpful influences in the neighborhood, or by securing their removal from the district. For the purpose of the preventive and after-care work, the city has been divided into six districts. Some of the work in these districts is being done by volunteer workers who are not able to devote sufficient time in view of the extent and character of the work.”

NOTES FROM COLORADO

From a total of eighty persons aided in 1904 to total of 517 aided in 1910 has been the growth of the work of the Colorado Prison Association.^[1] That more care is being exercised in the aid given is indicated by the facts that during 1905-6 the average expenditure per person was \$24, during 1907-8 it was \$18, and during 1909-10 it was \$12.

In the biennial report of the president of the association, Mr. E. R. Harper, says:

“The working of convicts on the public roads has attracted the attention of the world, and fully demonstrated that it is feasible and highly beneficial to so handle the men. It would have been difficult some few years ago to believe that penitentiary convicts could be placed in camps, in the wild and rugged sections of our state, in the mountains, the most ideal situation for safe ‘get-aways,’ without a guard or gun in camp, and yet not have wholesale escapes. But penitentiary prisoners, upwards of 300 in number, have been so handled during the past three or four years, under just such conditions, with the most gratifying results—a long step, indeed, in the right direction. And this condition was brought about partly through the work and influence of this association.

“However, to make such progress in these matters as ought to be, additional assistance is essential, mainly in the way of new laws. The most needful just now are: A law giving the trial judge the right to parole first offenders; an amendment to the present law regarding the feeding of jail prisoners, doing away with the possibility, if not

the probability, of exorbitant and unnecessary expenses to the counties; a law providing for working jail prisoners on the highways, and for the work allowing them some little compensation to go toward the support of dependent ones. Measures to cover these essential matters have been introduced in the present legislature, and we earnestly hope for their enactment into law.

“Still in the future, but we trust not too far, Colorado should take the next important step and allow each penitentiary prisoner something for work done, so that it can either go toward assisting those depending on him, or be accumulated to his credit, in order that he may have at least a little with which to get out into the world of action and usefulness again. When that condition prevails, very much, if not all, of this association’s work will be accomplished; and its charitable force can be directed in some other channel of service.”

Though called in November, 1910, to take charge of the work of the Associated Charities of Denver, Colo., W. E. Collett has continued to act as general secretary of the prison association, serving in that capacity without pay.

THE PLEDGE AND OTHER WORK OF A CITY COURT

One of the features of the probation system, as practiced during the past year by Judge James A. Collins, of the City Court^[2] of Indianapolis, Indiana, has been the required “taking of the pledge” in a number of cases of persons found guilty of drunkenness. In his annual report for 1910 Judge Collins says:

“In all cases of first offenders charged with being drunk and in those cases where the defendant had others dependent upon him for support, the court has made it a condition on withholding the judgment or suspending the sentence that the defendant take the pledge for a period varying from six months to one year. At the close of the year one hundred and one persons had taken the pledge, and of this number all but ten had kept the same faithfully. Eighteen

of these were women, of whom all but three are reported to have kept the pledge faithfully.”

Judge Collins has also set aside Wednesday afternoon exclusively for the hearing of the cases of women and girls. Since the law provided for no paid probation officers, and since it was desired that for the separate trials of women and girls there be an adequate system of investigation and supervision, the Local Council of Women guaranteed the expenses of a woman probation officer.

The court has instituted also a “missionary box,” into which is put all unclaimed money obtained in gambling raids. The funds so collected have been used to furnish transportation for runaway boys and girls, to provide necessities for the destitute, and on several occasions to return veterans to the Soldiers’ Home at Marion or at Lafayette.

One operation of sterilization for degeneracy was performed during the year at the direction of the court.

Certain offenders have been allowed to pay their fines in installments.

“The old method of collecting money fines which compelled the defendant to pay or replevy the same the moment he was fined was always a source of great hardship on the poor. It was unreasonable to expect a common laborer arrested late at night and convicted in the morning to be prepared to settle with the state. If he was unable to pay or make arrangements to have his fine stayed for the statutory period, he was sent to prison, not because the judge had given him a term of imprisonment, but because he was poor, which is in effect imprisonment for debt.

“In those cases where a defendant had others dependent upon him for support he has been released on his own recognizance and the case held under advisement for thirty or sixty days, as the circumstances seemed to justify, at the expiration of which time he was required to report to the court that he had paid in the amount designated as the fine and costs to be entered against him.

“At the close of the year eight hundred and thirty persons had been given an opportunity to pay their fines in this way. Of this number

64 were re-arrested and committed for their failure to pay their fine, and the affidavits in 32 other cases are held for re-arrest. The balance lived up to their obligation with the court, and paid in more than \$7,100.

“This plan operates to the benefit of the defendant in several ways: It saves him his employment; it saves his family from humiliation and disgrace, as well as from the embarrassment incident to imprisonment; but more than all it saves him his self-respect. With but a single exception not one to whom this opportunity has been given and who has paid his fine in full has been in court a second time.”

Of the suspended sentence and the withheld judgment Judge Collins says:

“During the past year sentence has been suspended in two hundred and thirty-six cases and judgment withheld in thirty-four hundred and seventy-four. The majority of these were first offenders. In those cases where the judgment was suspended the court has had to set aside and commit the defendants in only two cases, and where the judgment has been withheld less than two per cent have been returned to court for a second or subsequent offense.”

SIR EVELYN RUGGLES-BRISE REPORTS OFFICIALLY.

London, April 7.—The English home office publishes the report of Sir Evelyn John Ruggles-Brise, chairman of the English prison commission and the British representative at the Prison Congress held at Washington last October. In his report Sir Evelyn commends American state prisons and reformatories, but condemns the system in vogue in city and county jails. He says that among the latter “many features linger which called forth the wrath of John Howard, the great English philanthropist, noted for his exertions in behalf of prison reform at the end of the eighteenth century.

“Promiscuity, unsanitary conditions, the absence of supervision, idleness and corruption—these remain features of many places,” says the report.

After describing some of the evils he saw Sir Evelyn concludes:

“Until the abuses of the jail system are removed it is impossible for the United States to have assigned to her by general consent a place in the vanguard of progress in the domain of ‘la science penitentielle’.”

MOVEMENT FOR NEW JERSEY WOMEN’S REFORMATORY

The Woman’s Reformatory Commission of New Jersey has decided to ask the legislature to appropriate \$200,000 to carry out the provisions of a law enacted in 1910 by which such a reformatory is established and its organization and administration provided for. This appropriation will be sufficient to secure a site and to erect the necessary buildings, consisting of six cottages to accommodate from twenty-five to thirty each, their estimated cost with equipment being \$25,000 each. The site is to be in the country, approximately two hundred acres, which with necessary administrative and other buildings will cost \$30,000. For sewage disposal \$15,000 will be needed, and \$5,000 will be necessary for preliminary expenses.

A census of women who were serving sentences in penal and reformatory institutions in New Jersey on the first of November last, including girls over sixteen years of age at the state home for girls at Trenton, numbered 336; the number between sixteen and thirty years of age was 210.

* * * * *

A definite move has been made in Michigan legislature looking to the treatment of habitual drunkenness on farms provided by the state. A bill directing the governor to appoint a commission of five to investigate the subject of farm colonies for inebriates and other minor offenders who at present are confined in jails has been introduced by Senator George G. Scott of Detroit. The commission is authorized to extend its investigations to methods in force in foreign countries as well as this. The report will be made to the next legislators.

EVENTS IN BRIEF

[Under this heading will appear each month numerous paragraphs of general interest, relating to the prison field and the treatment of the delinquent.]

Families of Prisoners Excite Discussion.—The subject of prisoner's pay for work done during incarceration is receiving wide-spread discussion in this country. The note constantly struck is the need for support of those dependent on the imprisoned bread winner.

In Rhode Island a bill has been introduced to the assembly increasing the wages of jail term offenders from 25 cents to one dollar a day.

The members of the board of control of the prison at Jackson, Mich., favor a change in the method of paying the inmates employed in the binder twine plant of the institution. The present law gives the men 10 per cent of the net profits of the plant each year. Some of the evils of this arrangement are thought to be that the men have to wait too long for their pay, and that they are kept in unnecessary doubt as to the amount they shall receive. The plan of the prison board is that they shall be paid from 10 to 15 cents a day for their services.

In Massachusetts the Springfield Republican, among other papers, has recently advocated the extension of the present law, providing that prisoners be paid nominal wages for the benefit of their families, to include the inmates of work houses and all places of detention. Says the Republican:

“In the workhouse the convicted mis-doer is set to broom making. Why should not his family have the aid of part of such earnings? Why should not all prisoners, in all parts of the country, contribute, through state officials, to the support of their hapless families? Wife and children have not broken the law—they should not then be left to starve.”

* * * * *

Finds Canadian Prisons Better Than Ours.—Considerable newspaper prominence has been given to a report on Canadian prisons made recently by the Rev. Dr. John Handley, who was commissioned by the Governor of New Jersey to visit Canada and examine her prisons. The Tribune of Providence, R. I., concludes from this report that Canadian prisons are “somewhat in advance of ours in some respects.” The Tribune thus discusses Dr. Handley’s report:

“The Canadian idea is that reformatory should be a large custodial school rather than a penal institution; that it should be removed as far as possible from the thought of felony and the disgrace that attaches to any young man or boy who has violated the law and thus become subject to a reformatory sentence. And in accordance with that idea each Canadian prison has a large farm attached, to which prisoners are sent to work. From the federal prison at Toronto, for example, at least half the prisoners are put to work on a farm where there are no surrounding walls, no regiment of guards and no rigid surveillance, and yet from which in two years only five prisoners attempted to escape.

“Dr. Handley has returned to New Jersey strongly in favor of this farm idea as an aid in reformatory work. It is not, however, an altogether new idea in the States. In several of our penitentiaries men are allowed to work out of doors even a long distance away, under only a light guard, and very few have attempted to escape. The State homes, too, ordinarily have no high walls around them, and the inmates are allowed many liberties.

“How far farm regulations could be applied to offenders who have been sentenced to state prison is another question, and one not easy to answer. The experiment seems to work well in Canada, however; and if farms could be utilized for the benefit of the prisoners there would not be the objection made by organized labor to most other forms of prison employment, since there is always a market for farm products and nothing that could thus be raised would affect farm wages or the prices of staple products. Moreover, much of the farm yields would go toward the maintenance of the prisoners.”

* * * * *

A Bibliography For The Student.—A helpful tool for the student of criminology and allied subjects has just been furnished in the form of a “bibliography on crime, its causes and prevention, criminals, punishment and reformative methods, with special reference to children,” The pamphlet is the work of Mr. Paul A. Wiebe, of Meriden, Conn., and comprises a bibliography of books, senate documents, magazine articles, circulars, addresses and the publications of various organizations, together with a brief list of German publications. The collection is not so exhaustive as to be confusing.

* * * * *

Tuberculosis Among Prisoners.—That 16,000 persons infected with tuberculosis are annually sent out into society by the prisons of this country is a statement attributed to Dr. J. B. Ransom, physician to Clinton Prison, New York. In the course of a recent address Dr. Ransom showed the good results flowing from the special care in New York prisons of those with tuberculosis.

In a similar connection the Lincoln, (Neb.) News says:

“Not long ago the statement is alleged to have been made by the warden of the western penitentiary of Pennsylvania that approximately 300 out of 1,300 inmates of that institution were suffering from tuberculosis. In private conversation, says the Journal of Criminal Law and Criminology, the warden of one of the eastern state penitentiaries expressed his belief that six per cent of the inmates of his institution had tuberculosis in some degree.

“Only twenty-one prisons in fifteen states and territories have provided special places for the treatment of their tuberculosis prisoners and these have accommodations for only 800 patients. In three-fourths of the major prisons and in practically all of the jails of the country the tuberculosis prisoner is allowed freely to infect his fellow prisoners, very few restrictions being put upon his habits.”

* * * * *

A French Study of Vagrants and How To Treat Them.—An interesting classification of so-called “non-producers,” or vagabonds, has been made by Etienne Flandid, who has recently conducted a study of the criminal classes of France. M. Flandid has made his studies the basis of a report which is being considered by the French senate.

He divides vagabonds into three classes. In the first class are the infirm and aged. These, he believes, should be properly clothed and fed and housed by the state or municipality. The second class contains the “accidental out-of-works.” Under M. Flandid’s recommendation these will be sent to a penal labor colony, where they will be kept and put to work until employment is found for them outside of the colony. It will be the duty of the state to seek to secure employment for them, and to notify them and release them from the colony at the earliest possible date. The third class contains the professional tramps, the fellows who do not want work and who would not accept employment if it were tendered them. This class is to be shut up in penal colonies for periods of from five to ten years. After serving the first sentence, if they do not secure employment, they will be returned to the penal colonies and kept there for life, with plenty of good, wholesome work to do. By ridding society of these three classes of people, or by providing for them in the manner stated, he believes that crime will be so greatly lessened that there will hardly be any use for the police forces, save to gather in the few vagabonds as they develop. He argues that nearly all crime is committed by one or the other of the three classes named, especially by the third class.

Speaking editorially of this report, the Dayton, Ohio, *News* says:

“Practically every country on earth today has its problems of the unemployed. France is not alone in the matter. Even in this country, where there is so much to be done, where conditions are better than almost anywhere else on earth, we have the three classes referred to by the Frenchman, and we have done little to improve conditions. We have our civic societies, and our reform organizations and our bodies of philanthropists. But we have not gone to the root of the matter as have the French, and we have no students devoting as much time to the study of the question as can be found in other countries. We complain much about the cost of living—as we have a

right to—and we print thousands of columns about the trusts and the tariff, as is well that we should. But we are overlooking one of the real questions of economy when we fail to study and to understand the problems presented to us in the way of the unemployed.”

* * * * *

Resignations Follow Criticism of Juvenile Court of Louisville, Ky.—A somewhat acute situation has developed among those interested in the work of the juvenile court and juvenile probation in Louisville, Ky. As a result of what is by some persons characterized as the courts’ “totally irresponsible methods in caring for dependent and delinquent children,” Bernard Flexner and several other members of the Juvenile Court Advisory Board have resigned their positions. The straw which broke the camel’s back was the appointment by Juvenile Judge Muir Weissinger of a probation officer who is declared not only to be unfit for such a delicate position, but also to have a noteworthy political reputation. The Social Workers’ Conference held a mass meeting on March 16, at which were adopted resolutions calling for the removal of the probation officer in question. Speakers at the meeting declared that for a year conditions in the juvenile court have been intolerable; that children have been dragged into court and brow-beaten, some have been wrongfully placed in unworthy homes, and that all efforts to do something for them have come to naught. Judge Weissinger declared that he would not remove the objectionable probation officer until better evidence that he was unfit had been adduced.

* * * * *

Domestic Relations Courts.—In view of the interest with which the whole country is watching the work of the domestic relations courts newly instituted in the larger cities of New York, it is important that the court’s own story of its activities be set before the public. Recently such a court was instituted in the city of Chicago. Pointing in this same direction is a recommendation contained in the 1910 report of the Boston Associated Charities that the delinquent husband and father shall be constantly under the supervision of the court during the continuance of its direction to him to pay for the maintenance of his wife and child.

The domestic relations court for the Borough of Brooklyn, New York City, has put out a report of its work for the four months ending December 31st, 1910, these being the first four months of its existence. Judge Edward J. Dooley says:

“That the predictions of the opponents of a separate domestic relations court, that its organization would serve to promote more antagonism in the family, that it would tend to harass the husband, father and provident relative unnecessarily, have not been fulfilled. Statistics show that the number of cases brought herein since September 1st last, a period of four months, has been 574, which would be at the rate of 1,722 cases for the year 1910, for abandonment and non-support in the borough of Brooklyn. The number of cases of abandonment and non-support in the borough of Brooklyn for the year 1909 was 1,907, thus actually showing an apparent decrease of 185 cases of non-support for the year 1910, as compared with the year 1909.

“The provisions of Chapter 168, Laws of the year 1905, of the State of New York, which provides that the abandonment and non-support of a minor child or children is made a felony and extraditable has been put in execution, and it can be said that on a meritorious case the negligent father who actually abandons and neglects to support his minor child or children will be pursued to the extreme boundaries of these United States, arrested and brought into the jurisdiction of this court to stand trial for such desertion and non-support.

“No statistical information can be obtained as to the amount of money received in the magistrates courts of the borough of Brooklyn for the year 1909, but from my personal knowledge I venture to say that less than \$1,000 was received therein to be applied to the benefit of neglected wives and children during the year 1909, or any year previous thereto, within the last decade. For four months, from September 1st to December 31st, 1910, inclusive, there has been paid into the hands of the probation officers of this court, the sum of \$4,968.45 or at the rate of about \$15,000 a year.”

Something of the spirit in which the domestic relations court was conceived, and of the end which it was designed to further, may be glimpsed from the following paragraph from Judge Dooley:

“To make the improvident and negligent husband and father, as well as those who are liable for the maintenance of the dependant relatives, namely, the grandparents, parents, children, grand-children and relatives of a poor person of sufficient ability, realize the obligations that the law has cast upon them, to advise and admonish in the first instance as to their duty to their dependants, and to punish if advice be not followed, has been the rule and practice of the court. In other words, it is not a tribunal constituted for vengeance, spite, anger or petulant temperaments, to give vent to their wrath, but rather for the calm, cool and considerate treatment of each individual case in order that the greatest good may be accomplished to those entitled to its consideration and help, and that the basic foundation of the state, to wit, the family unit may be maintained if possible.”

The total number of persons arraigned in the court during the four months in question, including those transferred on September 1st, 1910 from the various magistrates' courts, was 881 only two of whom were women. Forty of these were convicted. 379 were discharged, and the cases of the remaining 462 were still pending at the close of the year. As to the nature of the offenses charged, 795 were accused of abandonment of wives and children, and 86 of failure to support poor relatives. The following table reveals some aspects of the probation system as used by the court:

Number of persons placed under probationary oversight	198
Completed probationary period and discharged with improvement	23
Completed probationary period and discharged without improvement	4
Re-arrested and committed	14
Absconded or lost from oversight	3
Pending on probation	154

* * * * *

Charges of "Crime Wave" Lead to Grand Jury Investigation.—In an open letter to the newspapers of the city, published during the latter part of March, Magistrate Joseph E. Corrigan declared that crime was flourishing in New York City more flagrantly than it had for years, that criminals were allowed to carry on their work with little molestation, that the police force was demoralized and cowed, and that the responsibility for these conditions lay upon the shoulders of Mayor Wm. J. Gaynor and upon his reforms in the police administration.

Within less than two weeks after the publication of this letter the grand jury was at work, under the direction of special assistants to the district attorney, upon the task of investigating these charges, in an effort to ascertain their truth, and to fix responsibility for the conditions described, in the event that those conditions were found actually to exist.

Meanwhile the newspapers, public bodies and private societies, to say nothing of the general community, were engaged in an intense and aggressive discussion of the situation of the city with reference to crime, heated tempers were being displayed in more than one quarter, crimination was being met by recrimination, and only such a catastrophe as the Asch building fire could divert the attention of the city from the discussion of the "crime wave" and its causes.

Magistrate Corrigan's general charges were followed by an array of specific facts and instances, presented by himself, by some of the newspapers, and by many private individuals, including social workers. It was freely alleged that Mayor Gaynor's doctrine of "personal liberty," and his discouragement of "needless and unjustifiable arrests," were responsible for the demoralization of the police force, and the consequent influx of criminals of every sort.

To all this Mayor Gaynor finally entered a general and emphatic denial. He praised the police force, scouted the idea of demoralization, declared that the laws were being efficiently enforced, and characterized the whole agitation as but a periodic recurrence of a long series of similar protestations. Such outcries, he said, were as regular in their coming as is the spring marble season among boys.

The grand jury investigation bids fair to be thorough. Police Commissioner Cropsey has been called upon for some extended testimony, and the district attorney has declared his intention to probe the situation to the bottom.

[1] From other extracts from report of this association see REVIEW for February, 1911, page 10.

[2] For other information see the March REVIEW, page 24.

Transcriber's Note:

Footnotes were renumbered sequentially and moved to the end of the book. Dialect, obsolete and alternative spellings were left unchanged.

The following items were changed:

Changed publication title to small caps in the first paragraph of the third article.

Removed duplicate anchor to footnote [2] from subtitle.

Added a missing endquote to text.

Spelling corrections:

‘originated’ to ‘[originated](#)’

‘pyschopathic’ to ‘[psychopathic](#)’

‘centry’ to ‘[century](#)’

‘physican’ to ‘[physician](#)’

‘necessitious’ to ‘[necessitous](#)’

*** END OF THE PROJECT GUTENBERG EBOOK THE REVIEW;
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